

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 11, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Allen moved to approve Consent Agenda items, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Special Meeting of the Governing Body on January 28, 2013. Motion (per Consent Agenda) carried.

[CA] Minutes from Regular Meeting of the Governing Body on January 28, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Upon inquiry regarding a voucher payable to Child Support Services, Lois Huff, City Treasurer, clarified these are deductions from employee pay checks pursuant to court issued garnishments. Upon inquiry, Ms. Huff and Rick Parish, Parks and Recreation Director, provided information on hockey referee services and number of games involved relative to vouchers payable to Michael Cote (\$245) and Tim McGuire (\$425). Mr. Parish advised hockey leagues have different pay schedules between score keepers and referees, and reviewed those leagues whose players travel for games. In response to inquiry, Ms. Huff provided information available on a voucher payable to Cowboy Supply House (\$677.30) for trash can liners. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the Zoning Classification from CB Community Business District to MUB Mixed-Use with Business Emphasis District for Lot 4, Block 486, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Hugur Avenue and E. 12th Street, approximately 500 feet northwest of the intersection of Logan Avenue and Nationway). Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body. (#3968)

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from HR-2 High Density Residential – Developing District to MR-2 Medium Density Residential – Developing District for Lots 1-6, Block 1, and Lots 1-6, Block 2, Diamond Estates, Fourth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Rio Verde Street and Pierce Avenue). Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body. (#3969)

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential District to HR-2 High Density Residential – Developing District for a tract of land situated in a portion of the East Half of the East Half (E½E½) of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming, to be known as Scenic Subdivision (located approximately 150 feet west of the intersection of Converse Avenue and Ogden Road). Brandon Cammarata, Planning and Development Director, advised additional information was received on this date from Scenic Development Group relative to this item as well as agenda item #20(a) (Preliminary Plat), and stated the Group has requested a letter be read into the record on its behalf as they were not able to attend the meeting (letter on file with Planning and Development and City Clerk offices). Upon inquiry by Mayor Kaysen to members of the governing body and there being no objection raised, Mayor Kaysen requested Mr. Cammarata read the letter submitted by Scenic Development Group. Mr. Cammarata read the letter (dated Feb. 11, 2013) which explained Scenic Development’s position that it may not be able to move forward with its apartment project as they are not the land owners of the parcel and conditions that are being recommended by the Public Services Committee, associated with the preliminary plat, are not agreeable to the land owner (i.e. Cole family). Casey Palma, Steil Surveying Services, agent for the applicant, Scenic Development, encouraged Council members to review the conditions being recommended for appropriateness, and suggested that perhaps there might be some way to find a flexible compromise between the parties. Ed Murray commented on the preliminary plat with Mr. Allen raising a point of order that discussion should remain pertinent to the zoning classification item. Mayor Kaysen requested Mr. Murray provide his comments on the preliminary plat when that item would be on the floor later in the meeting. Mr. Allen reported there was no recommendation on the item from the Public Services Committee. Mr. Allen moved to approve on second reading, seconded by Dr. Rinne. Comment followed regarding discussion at the Public Services Committee meeting regarding wording in Section 7. of the ordinance which reads: “ ... That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated Scenic Subdivision final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.” Mr. Allen moved to amend Section 7. to read as follows, seconded by Mr. Luna: “ ... That this ordinance shall be in full force and effect upon its approval and publication and upon the approval and publication of an ordinance annexing said property.” Discussion followed and included the following topics: Customary agenda procedure involving annexation, zoning and platting items that are affiliated, and concerns that the usual procedure was not being followed for the Scenic Development items; support for the apartment project; timing of actions to be taken on the zoning classification relative to annexation and preliminary/final plat; support for and against the proposed amendment, and possible postponement of the item. During discussion and upon inquiry, Mr.

Cammarata provided information pertaining to a previously adopted resolution determining conditions for annexation had been met (re: Scenic Development project property) relative to delayed introduction of the annexation ordinance. Motion to amend failed (due to a tie vote). Voting "yes" -- Mr. Allen, Mr. Cook, Mr. Luna, Mr. Shanor and Ms. Williams. Voting "no" -- Mr. Brown, Ms. Broyles, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Comments followed in non-support of the zone change due to the failed motion to amend and changing the zone classification prior to the property being annexed, and timing of actions to enable annexation and the zone change to be completed together. Upon inquiry, Mr. Palma advised general discussions have been held on whether a property to be annexed should have the zoning determined prior to annexation, and expressed his opinion that it would be appropriate to either postpone the item or deny it and resubmit it with the final plat. Main motion failed. Voting "no" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential District to MR-2 Medium Density Residential – Developing District for a tract of land situated in a portion the East Half of the East Half (E½E½) of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter (SW¼ SW¼ NW¼) of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming, to be known as the Bluffs, 9th Filing (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from P Public to NB Neighborhood Business for Lot 1, Block 4, Storey Boulevard Extension, Cheyenne, Wyoming (located east of and adjacent to Converse Avenue, approximately one-quarter mile south of Storey Boulevard) -- referred to Public Services Committee (sponsor -- Mr. Allen).

RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the East Half of the East Half of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter of Section 21, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road) (postponed from 1-28-13). James Perrot Macneil commented in opposition to all annexations, including any property he or the Union Pacific owns. Mr. Allen moved to adopt, seconded by Mr. Brown. Mr. Allen moved to postpone to March 11, 2013, seconded by Mr. Brown. It was noted postponement is at the request of the applicant. Motion carried. Voting "yes" -- all members of the governing body.

[CA] RESOLUTION - Approving Water and Sanitary Sewer Service, by User's Agreement, with Merrill, Inc., a Wyoming Corporation, 4703 Wright Court, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5475)

[CA] RESOLUTION - Approving Outsider User Water/Sewer Services, by User's Agreement, with Microsoft Corporation, Lot 2, Block 1, North Range Business Park, Fifth Filing, Laramie County,

Wyoming. Motion (per Consent Agenda) carried. (#5476)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Directing the City Attorney to petition the First Judicial District Court, Laramie County, Wyoming, for an order suspending, for a period not to exceed thirty (30) days, Retail Liquor License No. 39 issued by the City of Cheyenne to Stillwater, Inc., dba 'Mingles Bar' -- referred to Finance Committee (sponsors -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams).

[CA] RESOLUTION - Approving the Cheyenne Area Street Enhancement Toolbox -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Approving the West Lincolnway Streetscape plans (landscape and fence) -- referred to Public Services Committee (sponsors -- Mr. Allen, Ms. Broyles, Mr. Valdez and Ms. Williams).

Preliminary Plat for Scenic Subdivision, a tract of land situated in a portion of the East Half of the East Half (E½E½) of Section 20, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (located north of and adjacent to the existing WalMart store) (Annexation in process). Ed Murray, vicinity landowner, spoke in opposition to approval of the preliminary plat. He expressed his concerns with the proposed Scenic development parcel as submitted by the property owner in conjunction with the annexation application; convoluted procedure involving the parcel's affiliated annexation, zoning and platting processes, and lack of communication by the property owner (Cole family) and failure to look at comprehensive and "big picture" planning for the area. He reviewed his further concerns relative to Exhibit D, network transportation plan involving the area, that was submitted with the initial annexation application, stating the transportation plan reflected in the exhibit is inconsistent with the Master Transportation Plan incorporated into the City's PlanCheyenne. During his comments, Mr. Murray displayed and referred to an enlarged copy of Exhibit D (map) and a diagram depicting the Master Transportation Plan map portion from PlanCheyenne for the area, and discussed north-south and east-west collector roads in Section 20. He noted that the north-south collector road reflects the extension of Rue Terre north to Storey Blvd., and that specific land uses (zoning classifications) affecting the Murray property, as currently depicted in PlanCheyenne, show an emphasis on mixed use commercial and mixed use residential. Describing the Murray property as "the donut hole" situated at the cross-roads of the collector roads, Mr. Murray stated that changing the City's transportation network plan, as proposed by the property owner pursuant to Exhibit D, will have a detrimental effect on Murray property development plans. He explained his failed attempts to discuss the issues with the property owner; spoke in support of proper community growth and good community stewardship, and noted the City's vested financial interests in Storey Ave. and Converse Ave. roadway extensions and associated infrastructure. He indicated that a recent Exhibit C, submitted by the applicant for the preliminary plat, has resulted in three staff conditions being proposed in conjunction with the preliminary plat. In concluding his comments, Mr. Murray provided copies of Section 4.3.2, Transportation Network Plan, contained in the City's Unified Development Code (UDC), reciting the wording outlined in Section a., General Requirements, and provisions # 1. 3. and 4.; stated his opinion that compliance with the rules

of the UDC have not been met, and reiterated his opposition to approval of the preliminary plat. Ed Cole, Cole family, landowner, advised that what Scenic Development is proposing makes no difference on how the final transportation plan is adopted for Section 20. He briefly reviewed history of the City's acquisition of property from the Cole family along Storey and Converse, noting the City allowed four entrances into the land, one of which involves the Scenic Development area, and that planning staff now want to allow two other entrances, which was not part of the original plan. He advised the Cole family and City staff do not agree on the way the streets should be aligned; commented on the slow rate of commercial development in the area, and spoke in favor of the quality project proposed by Scenic Development and that it is a good project for the City, noting the time and money that Scenic has invested. He stated his belief that the street alignment issue does not make any difference in whether this is approved. Casey Palma, Steil Surveying Services, clarified there are four proposed conditions attached with the recommendation on the preliminary plat and that one of the conditions should address some concerns as it is a revision to the traffic impact study and analysis. He advised that Scenic is favorable to revising the transportation impact study and network plan prior to the final plat being submitted. Mr. Murray clarified his previous comments were made to specifically address concerns involving the project area as well as for betterment of the community through comprehensive area planning that includes the transportation network, instead of piecemeal incremental developments. James Perrot Macneil spoke in opposition to the preliminary plat as the property has not yet been annexed, and against all community development generally. Mr. Allen moved to acknowledge receipt of the preliminary plat with staff conditions #1 through 3 as listed in the 02-01-2013 memo from the City Planning and Development Department, and requiring a revised Traffic Impact Study to provide consistency with the Transportation Network as required under Section 4.3.2 (re: UDC), seconded by Mr. Brown. Comments followed regarding the convoluted nature of issues and procedures involving development of the property; landowners' and developers' reliance on PlanCheyenne and the UDC (ordinance) transportation requirements; suggestion that customary vs. non-customary procedures involving the process affiliated with preliminary plats, annexations and zone changes be reviewed; concerns with preliminary plat issues; support for Scenic Development's housing (apartment) project and its benefit to the City; PlanCheyenne as a comprehensive plan and possible plan changes for flexibility; recognition of validity of staff concerns; collector street plans generally; incremental development, and approval of the preliminary plat providing an opportunity for the developer to move forward with its project. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Valdez voting "no".

[CA] Preliminary Plat for The Bluffs, 9th Filing, a tract of land situated in a portion the East Half of the East Half (E $\frac{1}{2}$ E $\frac{1}{2}$) of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter (SW $\frac{1}{4}$ SW $\frac{1}{4}$ NW $\frac{1}{4}$) of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (Annexation in process) (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road) -- referred to Public Services Committee.

[CA] Use Agreement to permit Level 3 Communications, LLC, limited use of the public right-of-way for the installation of fiber optic communications systems and setting a fee -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Noel Griffith, Jr. & Associates Architects for the provision of schematic design, design development, construction documents, bidding documents, bidding assistance and construction management for the Municipal

Pool Renovation and Expansion Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and DHM Design Corporation for the provision of schematic design, design development, construction documents, bidding documents and bidding assistance for the Converse Softball Complex Renovation project (Menard property sale proceeds) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5911 between the City of Cheyenne, Parks and Recreation Department, and Ayres Associates for additional retaining wall design to stabilize steep shoreline areas around Lake Minnehaha in Holliday Park (SLIB Grant funding). Motion (per Consent Agenda) carried (amount not to exceed \$21,680.00). (#5911)

[CA] Authorization to purchase traffic striping paint under Wyoming Department of Transportation Bid No. 12-325TZ (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$37,127.10).

[CA] Consideration of Bid #R-17-13 for furnishing two new medium/heavy duty transit buses with wheelchair lifts for the City of Cheyenne, Public Works Department, Transit Division (partial State Loan and Investment Board and Wyoming Department of Transportation funds) -- referred to Finance Committee.

[CA] Consideration of Bid #R-19-13 for furnishing ballistic vests for the Police Department from Skaggs Uniforms, Salt Lake City, Utah (Miscellaneous Federal Grants) -- referred to Finance Committee.

Appointment of John G. Knepper to the Board of Adjustment. Dr. Rinne moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-Appointments of Mal R. Burnside, Marty Crowe, Michael A. Metzler, and Jason Stephen to the Contractor Licensing Board; and William C. Beaman to the City of Cheyenne, Wyoming-Laramie County, State of Wyoming Joint Powers Board for Frontier Park improvements. Dr. Rinne moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

[CA] Request to approve, pursuant to Wyo. Stat. §12-5-402 (b), a sponsor relationship between Cheyenne Frontier Days, Inc. and Miller/Coors, a malt beverage industry representative, in conjunction with the 2013, 2014 and 2015 annual Cheyenne Frontier Days community event -- referred to Finance Committee.

Announcement was made of the appointments of Earl B. Kincheloe to the Cheyenne Housing Authority Board; Beth Pratt to the Mayor's Council for People with Disabilities, and Nicholas Pickering to the Building Code Board of Appeals, to be confirmed February 25, 2013.

Announcement was made that due to the Presidents' Holiday on Monday, February 18, 2013, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, February 19, 2013 at 11:00 a.m. and Public Services Committee will meet Wednesday, February 20, 2013 at Noon.

Announcement was made of a Public Hearing to be held Monday, February 25, 2013 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Ave., Cheyenne, Wyoming, for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, and microbrewery permits) filed with the City Clerk's Office.

Under other business:

Tom Lindsey commented on lack of development of the "downtown hole" off of Lincolnway and suggested a multi-purpose building be built on the site, including an underground parking area, which could house a health food restaurant, office space, short and long term housing, and outdoor area on the top of the building for activities and possibly a garden area.

Dennis Pacheco spoke in support of developing the "downtown hole", and discussed his concerns with poor road conditions within the City. He specifically referenced the vicinity of Pershing Blvd. and Logan Ave. as an example. Mayor Kaysen provided information on street improvements at 19th/20th and Converse that will begin this summer and extend west to the cemetery complex on Pershing, and noted there are also plans for improvements on Logan as funding becomes available. Comment was made thanking Mr. Pacheco for expressing his concerns.

County Commission Chairman Troy Thompson was recognized as being in attendance at the meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:28 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
February 21, 2013